

SENATE BILL 1138

By Taylor

AN ACT to amend Tennessee Code Annotated, Title 7,
Chapter 35; Title 7, Chapter 82 and Title 68,
Chapter 221, relative to sewer systems.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 7, Chapter 35, Part 4, is amended by adding the following as a new section:

A city or town that has operated a sewerage system outside of the corporate boundaries of the city or town for twenty-five (25) years or more shall not cease operating the sewerage system outside the corporate boundaries so long as the sewerage system maintains sufficient capacity, as determined by a study conducted by the Tennessee advisory commission on intergovernmental relations (TACIR).

SECTION 2. Tennessee Code Annotated, Title 7, Chapter 82, Part 3, is amended by adding the following as a new section:

A utility district that has operated a sewerage system in the unincorporated territory of a county for twenty-five (25) years or more shall not cease operating the sewerage system in the unincorporated territory so long as the sewerage system maintains sufficient capacity, as determined by a study conducted by the Tennessee advisory commission on intergovernmental relations (TACIR).

SECTION 3. Tennessee Code Annotated, Title 68, Chapter 221, Part 2, is amended by adding the following as a new section:

A municipality that has operated a sewage treatment works outside of the corporate boundaries of the city or town for twenty-five (25) years or more shall not cease operating the sewage treatment works outside the corporate boundaries so long

as the sewage treatment works maintains sufficient capacity, as determined by a study conducted by the Tennessee advisory commission on intergovernmental relations (TACIR).

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.